

Peer Tutoring Program Participation Agreement – TUTEE VERSION

(VCHS – Submit to office)

This Peer Tutoring Program Participation Agreement – Tutee Version (“Agreement”) is made by the undersigned Student/Tutee and the Student’s Parent/Guardian (collectively the “Tutee Parties”). By signing this Agreement, the Tutee Parties agree that the following terms and conditions shall apply to and govern every tutoring engagement the Student undertakes with any Tutor (and that Tutor’s Parent/Guardian) through the Valley Christian High School (“VCHS”) Peer Tutoring Program.

1. Evaluation and Qualification
 - a. The Tutee Parties understand and acknowledge that they are solely responsible for evaluating and selecting any Tutor. The Parent/Guardian of the Student should review the Tutor’s resume and conduct an interview prior to engaging the Tutor.
 - b. VCHS has only provided Tutor names based on Tutors proactively contacting VCHS and expressing interest as peer tutors. VCHS is providing Tutor information only as a convenience. The Tutee Parties understand they are solely responsible for determining any Tutor’s suitability. Academic performance depends on a variety of factors; VCHS makes no representation or warranty regarding the effectiveness, qualifications, or suitability of any Tutor, or that any engagement will achieve any desired outcome.
 - c. All tutoring will be conducted only in an outdoor public setting or over Zoom.
2. Tutoring Expectations
 - a. The Tutor has consented to their email address being provided to interested VCHS families. Both Tutor and Student understand that if there is any conduct or behavior that makes the other uncomfortable or concerned, they must notify their Parents and VCHS immediately. The Tutee Parties agree that the Student will act in a manner that is respectful and appropriate in all interactions and communications with any Tutor.
 - b. Any Tutor is not an agent or employee of VCHS at any time and is not engaged by VCHS to perform any tutoring. VCHS is not responsible for any alleged acts, omissions, or conduct of any Tutor or the Student. The Tutee Parties, to the fullest extent permissible, release VCHS (and its agents and employees) from any claims, liability, or expense arising from or relating in any way to any tutoring performed, except for claims arising from VCHS’s own gross negligence or willful misconduct.
 - c. Rates and tutoring format (Zoom, on-campus/in-person, 1:1, 1:2-3, etc.) will be negotiated and agreed upon separately by the parties for each individual tutoring engagement. It is strongly recommended that payment be exchanged from the parent of the tutee to the parent of the tutor via an electronic system such as PayPal or Venmo. Tutoring sessions are set at the election and schedule of the parties involved in each engagement.
 - d. Tutors are free to engage in similar services for other persons.
 - e. The Tutee Parties agree to comply with all applicable legal and tax obligations and requirements related to any payments made. The Tutee Parties expressly agree to

defend, indemnify, and hold harmless VCHS (including its agents and employees) for any claims for taxes, penalties, interest, or any other losses, claims, costs, or expenses (including attorney's fees) arising from or relating to their failure to abide by any legal, tax, or other applicable requirements, or any other claims relating to any engagement of a Tutor.

f. The Tutor and tutee should give more than 24-hours' notice for cancellation of a session. If the Tutor cancels a session less than 24 hours before the designated start time, then a free session will be owed to the tutee. If the tutee cancels less than 24 hours prior, then the session will still be compensated at the agreed-upon hourly rate for the Tutor. If the tutee cancels multiple sessions under 24 hours and does not compensate, the Tutor may dissolve the tutoring arrangement. If the Tutor cancels multiple sessions without 24-hour prior notice, the arrangement will also be null.

3. The Tutee Parties understand and agree that they are not to distribute any Student's, Tutor's, or Parents' personal contact information to third parties without consent.
4. An electronic, facsimile, or similar representation of a signature shall be regarded as an original signature to this Agreement. This Agreement may be executed and exchanged via electronic signature, .pdf, or a similar representation of a signature and may be executed in any number of counterparts, each of which shall be deemed an original and all of which together shall be deemed one and the same instrument.

We have read, understand, and agree to the terms and conditions of this Agreement. We understand and agree that any Tutor is not an agent or employee of VCHS and is being engaged solely by the Parent/Guardian of the Student.

Tutee's Parent/Guardian (printed)

Tutee's Parent/Guardian Signature

Date

Tutee (printed)

Tutee Signature

Date